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Subject:	WC Docket No. 19-166	ITC-T/C-20190614-00121
	ITC-T/C-20190614-00122	ITC-T/C-20190617-00123
	SCL-T/C-20190614-00018	ISP-PDR-20190620-00004
	ULS 0008686969	

Application by Zayo Group Holdings, Inc. (“Zayo Group”), including certain Zayo Group subsidiaries, and Front Range TopCo Inc.’s (Front Range) applications to the FCC pursuant to Sections 214 and 310(b)(4), (d) of the Communications Act of 1934, as amended, and Sections 34-39 of the Cable Landing License Act of 1921.

Dear Sir/Madam:

This Letter of Agreement (“LOA” or “Agreement”) sets forth the commitments that Zayo Group and its subsidiaries Zayo Group, LLC (ZGL), Electric Lightwave, LLC (“Electric Lightwave”), and Allstream Business US, LLC (“Allstream”) (collectively “Zayo”) make to the U.S. Department of Justice (“USDOJ”) and the U.S. Department of Homeland Security (“DHS”) (collectively “USG Parties”) to address national security, law enforcement, and public safety concerns arising from Zayo and Front Range’s applications to the Federal Communications Commission (“FCC” or “Commission”). Zayo and Front Range have requested approval to transfer control of Zayo’s domestic and international Section 214 authorizations, common carrier microwave licenses, and submarine cable landing license to Front Range pursuant to Sections 214 and 310(d) of the Communications Act, 47 U.S.C. §§ 214, 310; Sections 34-39 of the Cable Landing

License Act, 47 U.S.C. §§ 34-39; and the implementing regulations at 47 C.F.R. §§ 1.767(g)(6), 1.948, 63.04, 63.18, and 63.24. ZGL and Front Range have also filed a petition for declaratory ruling to permit foreign investment above the 25 percent benchmark in Section 310(b)(4) of the Act, 47 U.S.C. § 310(b)(4), and Section 1.5000(a)(1) of the Commission's rules, 47 C.F.R. § 1.5000(a)(1).

Zayo adopts as true and correct all statements that Zayo and its representatives have made to the USG Parties and the FCC in the course of the review of the above-referenced applications, and it hereby adopts those statements as the basis for this LOA.

Definitions

1. For purposes of this Agreement, the following definitions apply:
 - a. "Access" means the ability to undertake physically or logically any of the following actions:
 - (i) To read, copy, divert, or otherwise obtain non-public information or technology from or about software, hardware, a database or other system, or a network;
 - (ii) To add, edit, delete, reconfigure, provision, or alter information or technology stored on or by software, hardware, a system or network; or
 - (iii) To alter the physical or logical state of software, hardware, a system or network.
 - b. "Call Detail Record" ("CDR") means the data records or call log records that contain information about each call made by a user and processed by switch, call manager, or call server.
 - c. "Classified Information" means any information determined pursuant to Executive Order 13526, as amended or superseded, or the Atomic Energy Act of 1954, or any statute that succeeds or amends the Atomic Energy Act, to require protection against unauthorized disclosure.
 - d. "Covered Cable System" means all of Zayo's owned or leased equipment, facilities, and services pertaining to the AmeriCan-1 system, and any other undersea cable system owned or controlled, presently or in the future, by Zayo and which lands in the United States, and all associated Zayo Network Operations Centers. Covered Cable System does not include an undersea cable system in which Zayo may have a less than five (5) percent ownership interest or has only a non-controlling leasehold interest.

- e. “Customer Proprietary Network Information” (“CPNI”) has the meaning set forth in 47 U.S.C. § 222(h)(1).
- f. “Date of this Agreement” means the date on which Zayo executes this Agreement.
- g. “Days” means calendar days unless otherwise specified.
- h. “Domestic Communications” or “DC” means:
 - (i) Wire Communications, or Electronic Communications (whether stored or not), from one location within the United States, including its territories, to another location within the United States; or
 - (ii) The U.S. portion of a Wire Communication or Electronic Communication (whether stored or not) that originates or terminates in the United States or its territories.
- i. “Domestic Communications Infrastructure” (“DCI”) means:
 - (i) Any Zayo system that physically is located in the United States, including its territories, including any transmission, switching, bridging, and routing equipment, and any associated software (with the exception of commercial-off-the-shelf (“COTS”) software used for common business functions, *e.g.*, Microsoft Office) used by or on behalf of¹ Zayo to provide, process, direct, control, supervise, or manage Domestic Communications;
 - (ii) Any portion of a Covered Cable System that physically is located in the United States, up to the submarine line terminating equipment (“SLTE”), including (if any) transmission, switching, bridging, and routing equipment; and
 - (iii) Network Operations Center facilities, as defined *infra*.

¹ The phrase “on behalf of,” as used in this paragraph, does not include entities with which Zayo has contracted for peering, interconnection, roaming, long distance, wholesale network access, or other similar arrangements.

j. “Electronic Surveillance” means:

- (i) The interception of wire, oral, or electronic communications as set forth in 18 U.S.C. § 2510(1), (2), (4) and (12), respectively, and electronic surveillance as set forth in 50 U.S.C. § 1801(f);
- (ii) Access to stored wire or electronic communications, as referred to in 18 U.S.C. § 2701 et seq.;
- (iii) Acquisition of dialing, routing, addressing, or signaling information through pen register or trap and trace devices or other devices or features capable of acquiring such information pursuant to law as set forth in 18 U.S.C. § 3121 et seq. and 50 U.S.C. § 1841 et seq.;
- (iv) Acquisition of location-related information concerning a subscriber or facility;
- (v) Preservation of any of the above information pursuant to 18 U.S.C. § 2703(f); and
- (vi) Access to or acquisition, interception, or preservation of, wire, oral, or electronic communications or information as described in (i) through (v) above and comparable state laws.

k. “Foreign” means non-United States, or its territories.

l. “Government” means any government, or governmental, administrative, or regulatory entity, authority, commission, board, agency, instrumentality, bureau or political subdivision, and any court, tribunal, judicial or arbitral body.

m. “Implementation Plan” means the written blueprint of policies, standards, and procedures that Zayo will implement in order to comply with this Agreement, subject to the USG Parties’ approval. Certain of the rights and obligations of Zayo are set forth in further detail in the Implementation Plan, which will be drafted, adopted, and actualized by Zayo in accordance and consistent with Paragraphs 2-5 of this Agreement.

n. “Lawful U.S. Process” means U.S. federal, state, or local court orders, subpoenas, warrants, processes, directives, certificates or authorizations, and other orders, legal process, statutory authorizations and certifications for Electronic Surveillance, physical search and seizure, production of tangible things or Access to or disclosure of Domestic Communications, call-associated data, transactional data, Subscriber Information, or associated records.

o. “Managed Network Service Provider” (“MNSP”) means any third party that has Access to Zayo’s Principal Equipment for the purpose of:

- (i) Network operation; provisioning of Internet and telecommunications services; routine, corrective, and preventative maintenance, including switching, routing, and testing; network and service monitoring; network performance, optimization, and reporting; network audits, provisioning, creation and implementation of modifications or upgrades; or
- (ii) Provision of DC or operation of DCI, including: customer support; Operations Support Systems (“OSS”); Business Support Systems (“BSS”); Network Operations Centers (“NOCs”); information technology; cloud operations/services; 5G (SDN, NFV, Applications); and datacenter services and operations.

p. “Network Operations Center” (“NOC”) means any locations and facilities performing network management, monitoring, accumulating accounting and usage data, maintenance, user support, or other operational functions for DC or a Covered Cable System.

q. “Network Systems Security Plan” (“NSSP”) means a network systems security plan that addresses information security, remote access, physical security, cybersecurity, third-party contractors (managed service providers), Outsourcing and Offshoring, maintenance and retention of system logs, protection of Lawful U.S. Process, protection of U.S. Records obtained by Zayo from customers or through provision of services, and data breach notifications.

r. “NIST-Compliant Cybersecurity Plan” means a cybersecurity plan that complies with the most recently published version of the National Institute of Standards and Technology (NIST) Cybersecurity Framework, available at <https://www.nist.gov/cyberframework>.

s. “Offshore” means performing obligations of this Agreement using entities and personnel outside of the territorial limits of the United States, whether those entities or personnel are employees of Zayo.

t. “Outsource” means, with respect to DC, supporting the services and operational needs of Zayo at issue in this Agreement using contractors or third parties.

u. “Persons” means any natural person or legal entity.

v. “Personally Identifiable Information” (“PII”) means any information that uniquely identifies and correlates to a natural person or can be used to distinguish or trace a natural person's identity, alone, including his or her name, social security number, or biometric records, or when combined with other personal or identifying information that is linked or linkable to a specific individual, including date and place of birth, or parent's surname, including any “personal identifier information” as set forth in 31 C.F.R. § 800.402(c)(6)(vi)(B).

w. “Principal Equipment” means all primary telecommunications and information network (*e.g.*, wireline, wireless, subsea, satellite, LAN, WAN, WLAN, SAN, MAN, IP, MPLS, FR, Wi-Fi, 3G/4G/LTE, 5G, etc.) equipment (*e.g.*, hardware, software, platforms, OS, applications, protocols) that supports core telecommunications or information services (*e.g.*, voice, data, text, MMS, FAX, video, Internet, OTT, Apps), functions (*e.g.*, network/element management, maintenance, provisioning, NOC, etc.), or operations (*e.g.*, OSS/BSS, customer support, billing, backups, cloud services, etc.), including but not limited to routers, servers, circuit switches or soft-switches, PBXs, call processors, databases, storage devices, load balancers, radios, smart antennas, transmission equipment (RF/Microwave/Wi-Fi/Fiber Optic), RAN, SDR, equalizers/amplifiers, MDF, digital/optical cross-connects, PFE, multiplexers, HLR/VLR, gateway routers, signaling, Network Function Virtualizations, hypervisors, EPC, BSC, BT, or eNodeB.

x. For purposes of Covered Cable Systems, Principal Equipment includes: network element servers; routers; switches; repeaters; submarine line terminal equipment (“SLTE”); system supervisory equipment (“SSE”); signal modulators and amplifiers; power feed equipment (“PFE”); tilt and shape equalizer units (“TEQ/SEQ”); optical distribution frames (“ODF”); branching units (“BU”); synchronous optical network (“SONET”), synchronous digital hierarchy (“SDH”), wave division multiplexing (“WDM”), dense wave division multiplexing (“DWDM”), coarse wave division multiplexing (“CWDM”), or optical carrier network (“OCx”) equipment, as applicable; and any non-embedded software necessary for the proper monitoring, administration, and provisioning of a Covered Cable System (with the exception of COTS software used for common business functions, *e.g.*, Microsoft Office).

y. “Screened Personnel” has the meaning set forth in Paragraph 24.

z. “Security Incident” means any known or suspected:

- (i) Breach of this Agreement, including a violation of any approved policy or procedure under this Agreement;
- (ii) Unauthorized Access to, or disclosure of, PII;

- (iii) Unauthorized Access to, or disclosure of, information obtained from or relating to Government entities; or
- (iv) Event described below (any one or more of the following) which affect the company's computer network(s) or associated information systems:
 - A. Unplanned disruptions to or denial of a service
 - B. Unauthorized processing or storage of data;
 - C. Unauthorized modifications to system hardware, firmware, or software; or
 - D. Attempts from unauthorized sources to Access systems or data if these attempts to Access systems or data may materially affect company's ability to comply with the terms of this Agreement.

aa. "Sensitive Information" means information that is not Classified Information regarding:

- (i) the persons or facilities that are the subjects of Lawful U.S. Process;
- (ii) the identity of the government agency or agencies serving such Lawful U.S. Process;
- (iii) the location or identity of the line, circuit, transmission path, or other facilities or equipment used to conduct Electronic Surveillance;
- (iv) the means of carrying out Electronic Surveillance;
- (v) the type(s) of service, telephone number(s), records, communications, or facilities subjected to Lawful U.S. Process; and
- (vi) other information that is not Classified Information and is designated in writing by an authorized official of a federal, state or local law enforcement agency or a U.S. intelligence agency as "Sensitive Information."

bb. “Subscriber Information” means any information of the type referred to and accessible subject to the procedures set forth in 18 U.S.C. § 2703(c)(2) or 18 U.S.C. § 2709, as amended or superseded.

cc. “United States” (“U.S.”) means the United States of America including all of its states, districts, territories, possessions, commonwealths, and special maritime and territorial jurisdictions.

dd. “U.S. Records” means Zayo’s customer billing records, Subscriber Information, PII, CDRs, CPNI, and any other information used, processed, or maintained in the ordinary course of business related to the services offered by Zayo within the United States, including information subject to disclosure to a U.S. federal or state governmental entity under the procedures set forth in 18 U.S.C. § 2703(c), (d) and 18 U.S.C. § 2709.

ee. “Wet Infrastructure” means hardware components installed and residing on the undersea portion of any Covered Cable System, including fiber optic cables, repeaters, branching units, and routers (if any). Wet Infrastructure includes all the components used to define the topology of the undersea portion of any Covered Cable System.

Implementation Plan

2. Zayo agrees that it will develop an Implementation Plan regarding the methods and processes that will be used to ensure compliance with the Agreement no later than ninety (90) Days from the Date of this Agreement.

3. The Implementation Plan is subject to the USG Parties’ review, revision and approval. After consultation and agreement, Zayo will incorporate into the Implementation Plan any recommendation identified by the USG Parties in the course of its review.

4. Upon agreement of the Parties, the Implementation Plan may include additional requirements and specifications not specified herein but which support the interests and intent identified in this Agreement (*e.g.*, additional deadline periods).

5. Once approved and adopted, the Implementation Plan will be deemed incorporated as part of the Agreement and attached as Addendum A. Any subsequently revised Implementation Plan – once approved and adopted – will supersede the prior version and consequently be incorporated into the Agreement as detailed above.

Lawful U.S. Process

6. Zayo agrees to comply with all court orders and Lawful U.S. Process, including process relating to Electronic Surveillance. Zayo agrees to ensure that the DCI

is capable of complying, and confirms that employees of Zayo in the United States will have the unconstrained authority to comply in an effective, efficient, and unimpeded fashion, with all applicable lawful interception statutes, regulations, and requirements, including the Communications Assistance in Law Enforcement Act (“CALEA”), 47 U.S.C. §§ 1001-1010, and its implementing regulations.

7. Upon receipt of any Lawful U.S. Process, Zayo agrees to place any and all information responsive to the Lawful U.S. Process within the territorial boundaries of the United States and otherwise provide it to the requesting officials, in a manner and time consistent with the Lawful U.S. Process.

8. Zayo agrees to protect the confidentiality and security of all CALEA requests and Lawful U.S. Process served upon them, and the confidentiality and security of Classified Information, if any, and Sensitive Information in accordance with U.S. law.

9. Zayo agrees not to provide, or otherwise allow the disclosure of, or Access to, U.S. Records, Domestic Communications, or any call content and call data, to any Foreign Government, or Foreign Person that has not been screened consistent with Paragraph 22 of this Agreement, without prior written consent of USDOJ, or a court of competent jurisdiction in the United States.

10. Zayo agrees not to disclose the receipt of Lawful U.S. Process, or compliance with Lawful U.S. Process, to any Foreign Government, or any Person not authorized under the Lawful U.S. Process, without prior written consent of USDOJ, or a court of competent jurisdiction in the United States.

11. Zayo agrees to refer any requests for U.S. Records, Domestic Communications, or any call content and call data from a Foreign Government, including any legal process from a Foreign Government, or a Foreign Person that has not been screened consistent with Paragraph 22 of this Agreement to USDOJ as soon as possible, but in no event later than five (5) Days after such a request or legal process is received by, or made known to, Zayo, unless disclosure of the request or legal process would be in violation of U.S. law or in violation of an order of a court of competent jurisdiction in the United States.

12. Zayo agrees not to comply with such requests from Foreign Governments or Foreign Persons not screened consistent with Paragraph 22 of this Agreement without written approval from USDOJ or an order of a court of competent jurisdiction in the United States.

13. Zayo agrees to ensure that U.S. Records are not subject to mandatory destruction under any Foreign laws.

Law Enforcement Point of Contact and Security Officer

14. Zayo agrees to designate and maintain a U.S. law enforcement point of contact (“LEPOC”) in the United States who will be subject to prior approval by USDOJ, including the Federal Bureau of Investigation (“FBI”). The LEPOC will be a U.S. citizen residing in the United States or its territories, and the LEPOC must be approved by the FBI to receive service of Lawful U.S. Process for U.S. Records and, where possible, to assist and support lawful requests for surveillance or production of U.S. Records by U.S. federal, state, and local law enforcement agencies.

15. Zayo agrees to provide the LEPOC’s PII to USDOJ, including the FBI, within fifteen (15) Days from the date Zayo receives the FCC’s approval of the application for USDOJ and FBI objection or non-objection.

16. Zayo agrees to notify USDOJ, including the FBI, in writing at least thirty (30) Days prior to modifying its LEPOC for USDOJ and FBI objection or non-objection. Zayo agrees to provide USDOJ and FBI with the new LEPOC’s PII as part of this written notification.

17. Zayo agrees to designate and maintain a Security Officer. The Security Officer will have the appropriate authority and skills to implement the terms of this Agreement and to address security concerns identified by the USG Parties. The Security Officer will have the appropriate senior-level corporate authority within Zayo to perform his/her duties under this Agreement. The Security Officer will possess the necessary resources and skills to enforce this Agreement and to act as a liaison to the USG Parties regarding compliance with this Agreement and to address any national security issues arising during Zayo’s due course of business. Zayo will provide the Security Officer with Access to Zayo’s business information that is necessary for the Security Officer to perform his/her duties.

18. The Security Officer will be available twenty-four (24) hours per day, seven (7) Days per week, to respond to and address any national security, law enforcement, or public safety concerns that the USG Parties may raise with respect to Zayo or its operations. Upon request by the USG Parties, the Security Officer will make himself/herself available in person within the United States or its territories within 72-hours, at a date and location, including in a classified setting, as deemed necessary by the USG Parties.

19. Zayo agrees to nominate a proposed candidate for Security Officer to the USG Parties within thirty (30) Days of the date of this Agreement, and thereafter will provide at least ten (10) Days’ notice of a Security Officer’s departure, and thirty (30) Days’ prior notice of a new Security Officer designation (except in the case of the unexpected firing, resignation, or death of the Security Officer in which case such written notice must be provided within five (5) Days of such event) of such proposed change. Zayo further agrees to not maintain a vacancy or suspension of the Security Officer

position for a period of more than sixty (60) Days. All Security Officer nominations will be subject to the USG Parties' review and non-objection and may be subject to a background check at the sole discretion of the USG Parties. Zayo agrees to address reasonably any concerns raised by the USG Parties regarding the selection and identity of the Security Officer.

20. With respect to the Security Officer's qualifications, he/she must:

- a. Be a U.S. citizen residing in the United States;
- b. If not already in possession of a U.S. security clearance, be eligible, at the sole discretion of the USG Parties, to hold and maintain a U.S. Government security clearance at the "Secret" level or higher immediately upon appointment;
- c. Be subject to the screening process described in Paragraph 23 of this Agreement; and
- d. Have the appropriate senior-level corporate authority, reporting lines, independence, skills, and resources to enforce this Agreement.

21. The responsibilities and the duties of the Security Officer include but are not limited to the following:

- a. Providing the USG Parties with the Annual Report required of Zayo under Paragraph 53 of this Agreement;
- b. Developing, maintaining, and implementing a NIST-compliant Cyber Security Plan, NSSP, Information Security Plan, the Implementation Plan and any other policy or plan required by this Agreement;
- c. Providing the USG Parties with notice of any Security Incident or Breach as described in Paragraphs 34 and 35 of this Agreement;
- d. Providing the USG Parties with the Principal Equipment List required under Paragraph 37 of this Agreement and notice of any introduction of new Principal Equipment or modification of existing Principal Equipment as required under Paragraphs 39 and 40 of this Agreement;
- e. Providing the USG Parties with the initial list of all Outsourced or Offshored service providers required under Paragraph 43 of this Agreement and providing the USG Parties with notice of any new Outsourced or Offshored service providers as required under Paragraph 44 of this Agreement;
- f. Reporting to the USG Parties, changes to Zayo's business or service portfolio that would require notification to the USG Parties under Paragraphs 46 and 47 of this Agreement;

- g. Providing the USG Parties with the biannual lists of interconnection carriers and peering Agreements as required under Paragraphs 48 and 49 of this Agreement;
- h. Implementing all aspects of compliance with this Agreement and all corporate policies, procedures, and plans to promote and ensure compliance with this Agreement; and
- i. Being available upon 48-hours advance notice for discussions with the USG Parties relating to the enforcement of and compliance with this Agreement or any other issue involving national security.

Screening of Personnel

22. Zayo agrees to implement, either directly or through a vendor or service provider, a process to screen existing or newly hired Zayo personnel or any personnel performing under an agreement who have access to U.S. Records, Domestic Communications, Sensitive Information, Classified Information, or the DCI.

23. Zayo agrees that the personnel screening process will include background investigations, public criminal records checks, or other analogous means to ascertain a person's trustworthiness. Zayo agrees to submit to the USG Parties a written description of this personnel-screening process no later than sixty (60) Days after the Date of this Agreement for USG Parties' objection or non-objection.

24. Zayo agrees that upon satisfactory completion of the screening process set forth in Paragraph 22, such persons will be considered "Screened Personnel." Zayo further agrees to rescreen Screened Personnel who have access to Sensitive or Classified Information or the DCI every five (5) years.

25. Zayo agrees to maintain records relating to the status of Screened Personnel and provide such records to the USG Parties upon request.

Unauthorized Access and Security Incidents

26. Zayo agrees to take all practicable measures to prevent unauthorized Access to U.S. Records, Domestic Communications, DCI, Sensitive Information, and Classified Information.

27. Zayo agrees to take all practicable measures to prevent any unlawful use or disclosure of information relating to U.S. Records, Domestic Communications, Sensitive Information, and Classified Information.

28. To this end, Zayo agrees to draft: (1) a NIST-Compliant Cyber Security Plan; (2) an updated version of the NSSP; and (3) an Information Security Plan. Zayo will provide all three of these plans, which may be combined into one or more

documents, to the USG Parties within sixty (60) Days of the Date of this Agreement. The USG Parties will approve or disapprove the policy within sixty (60) Days of receipt or as otherwise agreed to by the parties, with the right of approval not waived unless provided in writing by the USG Parties.

29. Zayo agrees that the NSSP will address, but not be limited to, information security, remote access, physical security, cyber-security, third-party contractors, Outsourcing and Offshoring, maintenance and retention of system logs, periodic internal audits of network security and associated network devices, protection of Lawful U.S. Process, protection of U.S. Records obtained by Zayo in the ordinary course of business, and Zayo's specific plan regarding new contracts or any amendments to any existing contracts with third-party providers of services to require those third parties to notify Zayo in the event of a breach or loss of U.S. Records within a specified time period after discovery, not to exceed 48 hours from the time of discovery.

30. The NSSP will also ensure the protection and resiliency of any Covered Cable System, including measures to ensure that security patches for systems and applications are up to date.

31. Zayo agrees to create an Information Security Plan within sixty (60) Days from the Date of this Agreement. Zayo further agrees to comply with the Information Security Plan and to adapt the plan as necessary. The Information Security plan will, at minimum:

- a. Provide for appropriate measures to prevent unauthorized Access to U.S. Records, DC, DCI, any Covered Cable facilities, and/or its secured facility that contains Classified or Sensitive Information;
- b. Assign Screened Personnel who are U.S. citizens that meet high standards of trustworthiness for maintaining the confidentiality of Sensitive Information to positions that handle or that regularly deal with information identifiable to such personnel as Sensitive Information;
- c. Upon request from USDOJ, Zayo agrees to provide to USDOJ the PII and other relevant requested identifier information of each person who regularly handles or deals with Sensitive Information;
- d. Require that Screened Personnel handling Classified Information have been granted appropriate security clearances consistent with Executive Orders 12968 and 13467 and other applicable law;
- e. Ensure that the Security Officer maintains sufficient authority over Screened Personnel who may handle Classified Information or Sensitive Information to maintain the confidentiality and security of such information in accordance with applicable U.S. legal authority and the terms of this Agreement;

- f. Ensure that the disclosure of, or Access to, Classified Information or Sensitive Information is limited to those who have appropriate security clearances and authority;
- g. Identify the types of positions that require screening pursuant to Paragraph 22 of this Agreement, the required rigor of such screening by type of position, and the criteria by which Zayo will accept or reject Screened Personnel (as defined in Paragraph 24); and
- h. Require that Zayo maintain appropriately secure facilities within the United States for the handling and storage of any Classified Information or Sensitive Information.

Zayo understands that the USG Parties will approve or disapprove the Information Security Plan within sixty (60) Days of receipt or as otherwise agreed to by the parties, with the right of approval not waived unless provided in writing by the USG Parties.

32. Zayo agrees that nothing contained in this Agreement or the Implementation Plan will limit or affect the U.S. Government's authority to grant, deny, modify, or revoke Zayo's Access to Classified and Sensitive Information.

33. Zayo agrees to notify the USG Parties at least thirty (30) Days prior to Zayo, or any entity with which Zayo has contracted or arranged for data or communications processing or storage, (1) storing any authoritative version (e.g., generated from source materials in the U.S. but not including a backup copy) of U.S. Records or Domestic Communications outside of the United States or its territories; or (2) moving the storage location of any backup copies of U.S. Records or Domestic Communications from one location outside of the United States or its territories to another location outside of the United States or its territories for the USG Parties' objection or non-objection. Zayo further agrees that such notice will include:

- a. A description of the type of U.S. Records or Domestic Communications to be moved to the new storage location;
- b. The custodian of the U.S. Records or Domestic Communications (even if such custodian is Zayo);
- c. The location where the U.S. Records or Domestic Communications are to be stored; and
- d. The factors considered in deciding to store the U.S. Records or Domestic Communications in the new storage location.

Reporting Incidents and Breaches

34. Zayo agrees to report to the USG Parties, including the points of contact (POCs) listed in Paragraph 53, within 48-hours if it learns of information that reasonably indicates:

- a. A Security Incident;
- b. Unauthorized Access to, or disclosure or corruption of, a Covered Cable System or any information being carried on a Covered Cable System, or any information relating to services provided by Zayo, or referring or relating in any way to Zayo's customers in the United States or its territories;
- c. Any unauthorized Access to, or disclosure of, Domestic Communications in violation of federal, state, or local law; or
- d. Any material breach of the commitments made in this Agreement.

35. Zayo agrees to notify the USG Parties, including the POCs listed in Paragraph 53, within 48 hours if it learns of any data breach of any U.S. Records, or any loss of U.S. Records, whether from a data breach or other cause. To the extent Zayo already has Agreements with any third-party service providers with Access to U.S. Records, Zayo agrees to amend those Agreements to require those third-parties to disclose any breaches, or loss of U.S. Records consistent with this paragraph, and it will forward copies of those amended Agreements to the USG Parties within five (5) Days of executing those amendments.

36. Zayo agrees to notify the FBI and U.S. Secret Service, no later than seven (7) business days upon learning that a Person without authorization, or in exceeding their authorization, has gained Access to, used, or disclosed any of its customer's CPNI, or that of a third party used by Zayo, and shall report the matter to the central reporting facility through the following portal:

<https://www.cpnireporting.gov/cpni/content/disclaimer.seam>

Principal Equipment

37. Zayo agrees to provide the USG Parties within thirty (30) Days from the date Zayo receives the FCC's approval, a list to include:

- a. A complete and current list of all Principal Equipment, including:
 - (i) a description of each item and the functions supported;
 - (ii) each item's manufacturer; and
 - (iii) the model and/or version number of any hardware or software; and

- b. Any vendors, contractors, or subcontractors involved in providing, installing, operating, managing, repairing, or maintaining the Principal Equipment.

At the sole discretion of the USG Parties, Zayo agrees to supplement in writing the foregoing definition of Principal Equipment to address subsequent technological developments.

38. Zayo understands the USG Parties will approve or disapprove the Principal Equipment List within thirty (30) Days of receipt or as otherwise agreed to by Zayo and the USG Parties, with the right of approval not being waived unless provided in writing by the USG Parties.

39. Zayo agrees to provide the USG Parties at least thirty (30) Days' advance notice prior to performing any maintenance, repair, or replacement that would result in any modification to existing Principal Equipment for the USG Parties' objection or non-objection. Zayo need not comply with the advance notice requirement for any maintenance, repair, or replacement that is undertaken in response to an unforeseen or uncontrollable event and that is necessary to ensure the continued operability of the Zayo network; however, in such circumstances, Zayo shall provide advance notice to the USG Parties of the modification, if practicable, and if impracticable, Zayo shall provide notice within ten (10) Days after the material modification of the Principal Equipment. Zayo may continue to utilize any Principal Equipment maintained, repaired, or replaced pursuant to the process outlined in this Section, provided that the USG Parties do not object within thirty (30) Days of notification. For the avoidance of doubt, nothing in this Agreement shall be construed to limit the ability for Zayo to add additional equipment from a vendor already identified on the current Principal Equipment List. In the event of such an objection, Zayo will not expand the existing deployment or enhance the capabilities of any Principal Equipment to which the USG Parties have objected, and Zayo agrees to meet, confer, and otherwise attempt in good faith to resolve the USG Parties' objection. Until the objection is resolved, Zayo will not upgrade, install, replace, or service any objectionable Principal Equipment without written authorization from the USG Parties.

40. Zayo agrees to provide at least thirty (30) Days' advance notice prior to any addition of any new party to the list of vendors, contractors, or subcontractors involved in providing, installing, operating, managing, maintaining, or repairing the Principal Equipment or systems or software used with or supporting the Principal Equipment. In addition, Zayo agrees to provide at least thirty (30) Days' advance notice prior to any change to the service offerings or support from a previously-listed vendor, contractor, subcontractor (*i.e.*, where a previously-listed provider will be offering support in a previously unidentified way). Zayo understands that the USG Parties will approve or disapprove any modification or change proposed pursuant to this Section within 30 Days

of receipt or as otherwise agreed to by Zayo and the USG Parties, with the right of approval not being waived unless provided in writing by the USG Parties.

41. Zayo agrees to provide at least thirty (30) Days' advance notice to the USG Parties prior to initiating the testing of any new Principal Equipment connected to a Covered Cable System by any vendor not already on the approved Principal Equipment List. Zayo understands that DHS will approve or disapprove the testing proposed pursuant to this Section within thirty (30) Days of receipt or as otherwise agreed to by Zayo and the USG Parties, with the right of approval not being waived unless provided in writing by the USG Parties.

Cable System Information

42. Within forty-five (45) Days from the Date of this Agreement, and, thereafter, within fifteen (15) Days upon written request by DHS, Zayo agrees to make available the following Covered Cable System information:

- a. Network management information, including, as follows: (1) a network map that includes physical and logical topology; (2) network and telecommunications architecture descriptions and associated descriptions of interconnection points and controlled gateways to the DCI and Wet Infrastructure; (3) locations and functions of any NOCs, data centers, and main distribution facilities; (5) an organizational chart of Zayo senior officials responsible for operations of any Covered Cable System, to include specific reference to the names and positions; and (6) descriptions of interfaces and connections to any Covered Cable System for service offload, disaster recovery, or administrative functions;
- b. A complete and current list of all vendors held by Zayo or its designee(s) for the maintenance, repair and security of any Covered Cable System; and
- c. A restoration plan for the Principal Equipment and the Wet Infrastructure for any Covered Cable System.

Outsourced or Offshored Services

43. Zayo agrees to provide the USG Parties within thirty (30) Days from the date Zayo receives the FCC's approval, a list of all Outsourced or Offshored service providers that provide services to Zayo for the USG Parties' objection or non-objection. The list should include any Outsourced or Offshored service provider that provides services for:

- a. MNSP services;
- b. NOC(s);

- c. Network maintenance services;
- d. Billing or customer support services;
- e. Any operation or service that could potentially expose the DCI, Domestic Communications, or U.S. Records to include CPNI such as CDRs; and
- f. Deploying any network elements, hardware, software, core network equipment, and network management capabilities that are owned, managed, manufactured, or controlled by a Foreign Government or non-public entities.

44. Zayo agrees to notify the USG Parties in writing no less than thirty (30) Days prior to the use of any new Outsourced or Offshore service providers that will provide any of the services described in Paragraph 43(a)-(f).

45. The USG Parties agree to object or non-object to any new Outsourced or Offshore service providers, within thirty (30) Days of receiving notice.

Change in Ownership and Service Portfolio

46. Zayo agrees to provide the USG Parties with no less than thirty (30) Days' advance notice of any changes to its business, including but not limited to corporate structure changes or ownership changes involving five (5) percent or greater equity, corporate name changes, business model changes, corporate headquarter location changes, or business operation location changes.

47. For corporate structure changes or ownership changes requiring notice to the FCC, Zayo agrees to provide the USG Parties with notice of any change to its current portfolio of services offering, including offers of other services beyond its current portfolio, no less than thirty (30) Days in advance of such change for the USG Parties' objection or non-objection.

Peering Agreements and Interconnecting Carriers

48. Zayo agrees to provide the USG Parties with lists of its existing peering agreements and interconnecting carriers on a biannual basis beginning six (6) months from the Date of this Agreement.

49. Zayo agrees to provide additional lists of its peering agreements and interconnecting carriers within fourteen (14) Days upon USG Parties' request.

Network Operations Centers

50. Zayo agrees to notify the USG Parties in writing at least sixty (60) Days prior to changing the location of its Network Operations Centers for the USG Parties' objection or nonobjection.

Instruction of Obligations

51. Zayo agrees to instruct appropriate officers, employees, contractors, and agents as to Zayo's obligations under this LOA, including the individuals' duty to report any violation, and to issue periodic reminders of such obligations. Zayo agrees to issue initial instructions in writing within sixty (60) Days after the date the Implementation Plan is approved and adopted, and updated instructions annually thereafter. Zayo will submit a representation of such instructions to the USG Parties at the same time.

Third-Party Audit

52. Upon request by the USG Parties, but not more than once per year unless the original audit is found by the USG Parties to have been unsatisfactory, Zayo shall appoint, at Zayo's expense, a third-party independent auditor (the "Auditor") to assess compliance with this Agreement (the "Audit") within three (3) months of such USG Parties request. The Auditor and the scope of the Audit, including the methodology to be used, shall be subject to prior written approval by the USG Parties. Zayo shall submit sufficient information for each proposed Auditor and Audit for the USG Parties to assess the proposal and the auditor. Upon request, Zayo will disclose whether in the previous five (5) years there has been any work performed or any financial arrangement between the third-party auditor and Zayo. If the USG Parties do not object to the proposed Auditor or Audit within thirty (30) Days following receipt of the proposal, such proposal shall be deemed approved. If the USG Parties object to the proposal, Zayo shall submit a modified proposal, which may include naming a different Auditor or making any other appropriate changes to address the objection raised, to the USG Parties within twenty (20) Days of Zayo's receipt of any such objection, subject to the same approval and objection procedures as the initial proposal.

- a. Zayo will require the Auditor to produce a written final Audit report, which will be provided to the Security Officer and the USG Parties. The USG Parties may request supplemental reports if a final Audit report is not consistent with the USG Parties' expectations as it relates to the details of the analysis and conclusions presented.
- b. The USG Parties shall have the right to meet and confer with the Auditor independently of Zayo.

Annual Report

53. Zayo agrees to provide an annual report to the USG Parties regarding its compliance with this Agreement over the preceding year, to include:

- a. Certification that there were no changes to the information required by Paragraphs 6-52 (where no changes were reported to the USG Parties during the preceding year);
- b. Notice(s) regarding the company's handling of U.S. Records, Domestic Communications, and Lawful U.S. Process (*i.e.*, whether handled properly and in accordance with the assurances contained herein) including a list of individuals with Access to Sensitive Information and Classified Information;
- c. An updated Principal Equipment List containing all information described in Paragraph 37 above, identifying any modifications during the reporting period;
- d. Notification of the use of any Foreign-owned Outsourced or Offshored service suppliers;
- e. Notification(s) of all interconnecting carrier relationships or peering agreements as required under Paragraph 48 and 49 of this Agreement;
- f. Updated network diagrams showing all network points of presence and devices;
- f. Covered Cable System information as described in Paragraph 42, noting any changes during the reporting period;
- g. Updated Implementation Plan, NSSP, NIST-Compliant Cyber Security Plan, Information Security Plan, and Personnel Screening Policy, and a summary of any changes during the reporting period and the reasons therefore;
- h. Report(s) of any occurrences of Security Incidents or Breaches as described in Paragraphs 34 and 35 of this Agreement;
- i. Recertification of the services that Zayo provides or confirmation that no additional services are being offered;
- j. The names and contact information of the LEPOC and Security Officer;
- k. The location of Zayo's secured facility required under Paragraph 31(h);
- l. Any changes to the location of Zayo's Network Operations Centers; and
- m. Notices to the USG Parties provided under any other provision of the Agreement.

The annual report will be due each calendar year beginning one (1) year from the Date of this Agreement. Zayo agrees to send electronic copies of the annual report and all notices and communications required under this LOA to the following individuals or any other individuals that DOJ or DHS identifies to Zayo in the future: Lee Licata, USDOJ (at Lee.Licata@usdoj.gov); Eric Johnson, USDOJ (Eric.S.Johnson@usdoj.gov); Loyaan Egal, USDOJ (at Loyaan.Egal@usdoj.gov); FIRS Team (at FIRS-TT@usdoj.gov); and DHS FIRM (at IP-FCC@hq.dhs.gov). Upon a USG Parties request, Zayo also agrees to provide the USG Parties with paper copies of any annual report, notices, or communications required under this LOA.

Miscellaneous

54. The USG Parties may visit, with twenty-four (24) hours' prior notice, during regular business hours any facility of Zayo, including Covered Cable System facilities, to conduct on-site reviews or inspections concerning the implementation of the terms of this Agreement and may require unimpeded access to Zayo's executives or employees and records related to Zayo's compliance with this Agreement and any other information concerning technical, physical, management, or other security measures needed to verify compliance with this Agreement. Zayo shall cooperate with any request by the USG Parties for access to Zayo personnel, facilities, or information for the purpose of monitoring compliance with this Agreement

55. Zayo may request in writing a waiver or modification of any obligation in this LOA. The USG Parties agree to respond in writing to such request no later than seven (7) business days after receiving such a request. Any response other than an explicit grant of the sought waiver or modification will be deemed a denial.

56. If closing of the transaction between Zayo and Front Range is delayed beyond the relevant time periods set forth in this LOA, USG Parties agree to make reasonable efforts to accommodate for such delays, including extending relevant time periods, as applicable, for submission of information.

57. Zayo agrees that in the event that it fails to comply with a material commitment set forth in this Agreement, to include conduct contrary to any timely USG Party objection to any notice submitted pursuant to this agreement, the USG Parties may request the FCC modify, condition, revoke, cancel, terminate or render null and void any relevant license, permit, or other authorization granted by the FCC to Zayo or its successors-in-interest in addition to pursuing any other remedy or penalty available at law or equity.

58. If, after this Agreement takes effect, the USG Parties or Zayo believes that changed circumstances warrant modifying or terminating this Agreement (including if the USG Parties determine that the terms of this Agreement are inadequate or no longer necessary to address national security, law enforcement, or public safety concerns), Zayo agrees to negotiate in good faith with the USG Parties to modify this LOA. Rejection of a proposed modification alone shall not constitute evidence of a failure to negotiate in good faith.

59. Zayo understands that, upon execution of this Agreement by an authorized representative or attorney, or shortly thereafter, the USG Parties agree to notify the FCC that they do not object to the FCC's consent to Zayo's application.

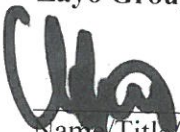
Sincerely,

 G.C. 1/21/20
Name/Title/Date

Zayo Group Holdings, Inc.

 G.C. 1/21/20
Name/Title/Date

Zayo Group, LLC

 G.C. 1/21/20
Name/Title/Date

Electric Lightwave, LLC

 G.C. 1/21/20
Name/Title/Date

Allstream Business US, LLC

Addendum A

Addendum A incorporates into this Agreement all provisions included in the Implementation Plan to be completed by Zayo within 90 days from the date of this Agreement pursuant to Paragraphs 2-5.